NewsBank inc.

California's Newly Enacted Social Media Law Will Impact Some Companies' Practices

September 29, 2022 | Mondaq.com (UK)
Author: Ariel Radow | Section: NEWS | 448 Words
OpenURL Link

California recently enacted A.B. 587, a law that will require social media companies to publicly post and submit semiannual reports to the California Attorney General detailing their terms of service and content moderation policies on hate speech, extremism, and disinformation.

The new law defines "social media companies" as persons or entities that own or operate one or more social media platforms. They will be required post their terms of service for each owned or operated social media platform, which must specify the user behavior and activities that are permitted as well as those that may subject the user or an item of content to being actioned, such as removal or banning.

Additionally, when submitting terms of service reports to the Attorney General on a semiannual basis, the companies must state whether their policies define content as "hate speech or racism," "extremism or radicalization," "harassment," and other categories, and how those

categories are defined. The reports must include information about content that was flagged as belonging to any of those categories as well as a detailed description of company content moderation practices.

The law will encourage social media companies to reflect on the role they play in public discourse when it comes to harmful social media content. State Assembly Member Jesse Gabriel stated, "This new law will finally pull back the curtain and require tech companies to provide meaningful transparency into how they are shaping our public discourse and addressing hate speech, disinformation, and dangerous conspiracy theories."

A.B. 587 was signed into law September 13th, 2022 and will impact California businesses that generate over $100 million per year in revenue. It does not apply to companies whose services are limited to "direct messages, commercial transactions, consumer reviews of products, sellers, services, events, or places, or any combination thereof."

This alert provides general coverage of its subject area. We provide it with the understanding that Frankfurt Kurnit Klein & Selz is not engaged herein in rendering legal advice, and shall not be liable for any damages resulting from any error, inaccuracy, or omission. Our attorneys practice law only in jurisdictions in which they are properly authorized to do so. We do not seek to represent clients in other jurisdictions.

Ariel Radow

Frankfurt Kurnit Klein & Selz

28 Liberty Street

New York

NY 10005

UNITED STATES

E-mail: info@fkks.com

URL: www.fkks.com

Click Here for related articles

(c) Mondaq Ltd, 2022 - Tel. +44 (0)20 8544 8300 - Copyright © 1994-2022 Mondaq ® Ltd. All rights reserved.
Provided by SyndiGate Media Inc. (Syndigate.info).

Copyright © 2022 Al Bawaba (x)

- **Citation (apa Style)**
  Radow, A. (2022, September 29). California's Newly Enacted Social Media Law Will Impact Some Companies' Practices. *Mondaq.com (UK)*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/18CD7254D010A7D8.